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BEFORE THE
FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

100-7-34
FEDERAL MARITIME COMMISSION

PETITION OF NATIONAL CUSTOMS BROKERS AND FORWARDERS ASSOCIATION OF
AMERICA FOR EXEMPTION
FROM MANDATORY RATE TARIFF PUBLICATION
DOCKET NO. P1-08

VERIFIED SUPPORTING STATEMENT OF [NAME OF WITNESS]

I am Mike Klage – International Pricing Coordinator.

I work for ProTrans International – NVOCC #017028NF – we have 4 offices – Corporate (Indianapolis, IN) – Miami, FL – Dominican Republic – Mexico, we have multiple agents overseas as well.

As a member of the NCBFAA we are very familiar with issues relating to the requirements for mandatory publication of ocean rate tariffs and are supporting the Association's petition to exempt NVOCCs from having to memorialize rates that have been negotiated with shippers in rate tariffs.

Rates with our clients are dealt with on a shipment by shipment basis. We send our clients a rate quote via email in an excel document or pdf file. Each time there is a change to that rate we send an updated file to our client. We then turn around and update our FMC at the same time with the 30 day required notice.

The way our company files with the FMC is with an outside company. We currently use an excel template to provide required information to our filing agent each time a rate is changed. This process is very cumbersome given the amount of changes in bunker, other accessorial and base rates. Traffic moves exclusively on rates that are negotiated, often if not usually, on a shipment by shipment basis. Even if we have a service contract with steamship line, many rates are negotiated on a spot market basis so that the traffic moves under bullet rates. As a result, NVOCC costs vary frequently and so the rates we offer will also vary frequently even for the same commodity moving in the same trade lane. Because the traffic usually moves almost immediately after the rates are negotiated, it is often difficult to ensure that the rates are memorialized in tariff form before the traffic moves. Shippers are satisfied to rely on the rates quoted via email, so they are not confused about the rate; nor have there been any disagreements about what the rate is. It is clear that shippers don't need or rely upon rate tariffs since there have been no hits on company's tariff website by any shippers over the past 2 years. In view of the large number of shippers serviced and the large number of carriers used, the publication process is a very cumbersome and expensive proposition.

There are a lot of difficulties in keeping up with the tariff filing, including the difficulty of keeping up with the constantly changing carrier tariffs, which may on occasion not provide sufficient notice, the need to quote numerous rates for prospective customers, only a few of which may ultimately be accepted.

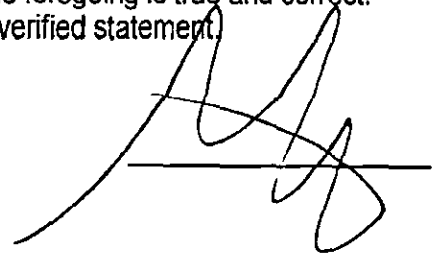
The NVOCC Service Arrangements have not provided relief from the burden of tariff filing because the benefit of confidentiality is not important, since no one accesses our rate tariffs anyway and NSAs still have to be written documents that have to be filed with the agency and the essential terms still have to be published in the tariff, so there is no cost savings and many shippers don't want to sign NSA's -- too formal, don't feel it is necessary. NSAs are too cumbersome except for large volume contracts with shippers; even there, many large shippers still prefer to avoid formal contracts.

We currently pay approx \$200 per month subscribing to a tariff publishing service. 8 hours per week each month are spent in maintaining the tariff website or making changes to tariff.

100% percent of time rates are separately negotiated with shippers as opposed to already being in your tariff.

I, Mike Klage, declare under penalty of perjury that the foregoing is true and correct. Further I certify that I am qualified and authorized to file this verified statement.

Executed on Sept. 25, 2008.

A handwritten signature in black ink, appearing to be 'Mike Klage', is written over a horizontal line.